



2026:AHC:152219-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 22437 of 2026

Lalit Kumar Tripathi

.....Petitioner(s)

Versus

The State Of Uttar Pradesh And 5 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Krishna Mohan, Rohit Varma
Counsel for Respondent(s)	:	Ashutosh Mishra, C.S.C., Gaurav Singh, Syed Abid Ali Naqvi

Court No. - 1

HON'BLE AJIT KUMAR, J.

HON'BLE SIDDHARTH NANDAN, J.

Heard Sri Rohit Varma, learned counsel for the petitioner and Sri Ashutosh Mishra, learned counsel for respondent no. 6, Sri Gaurav Singh, learned counsel for respondent nos. 4 and 5 and Sri Anand Bhaskar Srivastava, learned Standing Counsel for the State respondent.

By means of present petition filed under Article 226 of the Constitution, petitioner has prayed for a writ in the nature of mandamus commanding respondent nos. 4 and 5 forthwith to restore electricity connection, which they have got disconnected in the first floor of old no. 184/ 7084 new number, Ward No. 23, Tulsi Nagar, Baur Bazar, Atarra, District Banda, which was disconnected at the instance of the Sub Divisional Magistrate, who was hearing the petition filed under Section 145 of erstwhile Cr.P.C.

It is contended on behalf of the petitioner that petitioner and his cousin residing in the same house on its ground floor and first floor separately and have succeeded the property from their respective father who had jointly purchased the property, however, by setting up document of mutual partition, which he seriously disputes, his cousin wants to get him evicted from the premises and that is how proceedings were drawn under Section 145 of erstwhile Cr.P.C, 1973.

He further submits that petitioner's connection was already there on ground floor of the house and he is in possession of the property. He further submits that SDM has already accepted this fact that petitioner was in possession and it is how delivery of possession could not be effected upon in favour of his cousin. He further submits that petitioner being in possession of the ground floor of the house, he is fully entitled to have an electricity connection as petitioner is not in a status of a tenant, and therefore, he is entitled to have electricity connection for being in possession of premises in question. Learned Advocate has relied upon the judgment of Supreme Court in the case of **Criminal Appeal No. 810 of 2022 (arising out of special leave petition (Crl.) No. 8917 of 2019, Dilip (dead) through LRs. v. Satish and Others, 2022**

LiveLaw (SC) 570.

Opposing the writ petition, learned counsel for the respondent contended that the matter had earlier engaged attention of this Court in a petition filed under Article 227 of the Constitution and the order passed by SDM in exercise of power under Section 145 of erstwhile Cr.P.C has remained intact and attained finality. It is contended that writ petition has already been dismissed against the order passed by SDM.

Learned counsel for the respondent could not dispute that petitioner continues to be in possession of the ground floor of the house and learned counsel for the respondent also could not demonstrate that petitioner was residing in the capacity of tenant so as to require any no objection from the resident who is there on the first floor of the house claiming to be sole owner of the property.

Sri Gaurav Singh, learned counsel for respondent no. 4 and 5 submits that if petitioner is in possession of premises in question for which he claimed electricity connection as connection has already been disconnected only upon the order of Sub Divisional Magistrate, if he files indemnity form as vide Clause 4.4 of the UP Electricity Supply Code, 2005, it may be granted electricity connection which may be abide by final outcome of the pending petition.

In such view of the matter we are disposing of this petition with direction to respondent no. 5 to consider the application of the petitioner for granting electricity connection of the petitioner if there is no legal impediment, provided petitioner submits indemnity form as required under Clause 4.4 of the UP Electricity Supply Code, 2005 within two weeks from today, however we may clarify that such electricity connection will certainly subject to final outcome of the pending petition.

July 23, 2026
Sanjeev

(Siddharth Nandan,J.) (Ajit Kumar,J.)